

foundation is laid, but even if the Court were to consider those (a notarized letter from his father, Milad “Mike” Iskander; an email from Maggie Hanna, a director of a care facility Plaintiff’s father stayed in for several months, and a 2015 death certificate of his relative, Maha Iskander), they do not persuade the Court by a preponderance of evidence that Plaintiff did not oppose the demurrer or contest the tentative based on excusable neglect.

Ruling

For the reasons discussed above, Plaintiff’s Section 473(b) motion to be relieved of an order taken against him is DENIED.

8. 9:00 AM CASE NUMBER: C25-01722

CASE NAME: ANDREW CIBULA VS. ZEN DAY SPA

HEARING ON DEMURRER TO: ANSWER

FILED BY: CIBULA, ANDREW

TENTATIVE RULING:

Plaintiff Andrew Cibula demurs to the answer filed by defendant Kwan Fan Cheung. The demurrer is **SUSTAINED WITH LEAVE TO AMEND as to defenses 2, 7, 19, 22, 23, 24, and 25 and OVERRULED with respect to defenses 8 and 13**, as discussed below. Defendant Cheung shall file and serve an amended answer consistent with this ruling on or before May 21, 2026.

I. Factual and Procedural Background

Plaintiff filed his complaint on June 17, 2025 against Zen Day Spa and Kwan Cheung. The complaint alleges plaintiff suffered injury on June 24, 2023 when plaintiff was exposed to legionella, which defendants negligently allowed to grow and remain in a hot tub they stored in a poorly ventilated area. The complaint alleges two causes of action: one for general negligence and another for premises liability.

In response, Cheung filed an answer on December 16, 2025. The answer is a general denial, and includes 26 “affirmative defenses” as follows: (1) Failure to State Cause of Action); (2) Comparative Fault of Plaintiffs; (3) Assumption of Risk; (4) Lack of Notice; (5) No Duty Owed; (6) No Causation/Proximate Cause; (7) Failure to Mitigate; (8) Acts of Third Parties; (9) Statute of Limitations; (10) No Duty/Lack of Possession, Operation, Control or Right to Control (Landlord Non-Liability); (11) Proposition 51 (Several Liability for Noneconomic Damages); (12) Tenant Control/No Duty to Warn; (13) Intervening / Superseding Cause; (14) Compliance With Applicable Laws, Codes and Standards; (15) Contractual Allocation of Duties; (16) Apportionment; (17) Comparative Fault-Tenant/Co-Defendants; (18) Privette Doctrine / Independent Contractor; (19) Lack of Standing; (20) Punitive Damages Not Warranted; (21) Damages Limited by Law; (22) Speculative or Excessive Damages; (23) Compliance with Statute; (24) Excuse for Statutory Violation; (25) Statutory Causation; and (26) Reservation of Rights.

Affirmative defenses 10 and 12 specify that defendant Cheung is the landlord and that the tenant is responsible for any injuries.

Along with the answer, Cheung filed a cross-complaint, naming Zen . GL Inc. and Huan Fen Guan, doing business as Zen Day Spa. In the cross-complaint, Cheung alleges that Huan Fen Guan was, at all relevant times, a tenant who leased the property and operated a business known as Zen Day

Spa, either individually or through cross-defendant Zen . GL, Inc. Accordingly, the cross-complaint seeks indemnity and other relief against cross-defendants.

After efforts to meet and confer that failed to resolve the issues (see Declaration of Pete Clancy in Support of Plaintiff's Demurrer), plaintiff brought the present demurrer on the basis that many of the defenses fail to state sufficient facts to constitute a defense. Defendant opposes the demurrer, arguing that by including references to the tenant business (in affirmative defenses 10 and 12), the requisite facts have been alleged.

II. Standard

A party against whom an answer has been filed may object by demurrer on the following grounds: (a) the answer does not state facts sufficient to constitute a defense, (b) the answer is uncertain, or (c) where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral. (Code Civ. Proc., § 430.20.)

The grounds for a demurrer must appear on the face of the challenged pleading, or from matters subject to judicial notice. (Code Civ. Proc. § 430.30(a).) In evaluating the sufficiency of the challenged pleading, all material facts properly pleaded are treated as true, but not contentions, deductions, or conclusions of fact or law. (*Moore v. Conliffe* (1994) 7 Cal.4th 634, 638, citing *Serrano v. Priest* (1971) 5 Cal.3d 584, 491.)

III. Discussion

Plaintiff demurs to the following affirmative defenses for their failure to plead sufficient facts: 2, 7-8, 13, 19, 22, and 23-25.

Code of Civil Procedure § 431.30(b) provides that an answer to a complaint shall contain: (1) [t]he general or specific denial of the material allegations of the complaint controverted by the defendant, and (2) [a] statement of any new matter constituting a defense. "The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff. Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as 'new matter.'" (*State Farm Mut. Auto. Ins. Co. v. Superior Court* (1991) 228 Cal.App.3d 721, 725, internal citations omitted.) Such "new matter" is also known as "an affirmative defense." (*Advantec Group, Inc. v. Edwin's Plumbing Co., Inc.* (2007) 153 Cal.App.4th 621, 627.) A defendant must set forth only the "essential facts" of the affirmative defense, "sufficient to acquaint [plaintiff] with the nature, source and extent" of the defense. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 608.) This is known as the "fair notice" test.

Affirmative defenses cannot be "proffered in the form of terse legal conclusions." (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.) Rather, affirmative defenses must aver facts "as carefully and with as much detail as the facts which constitute the cause of action and which are alleged in the complaint." (*Ibid.*; *South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732 ["Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action."]) What is required are ultimate facts. (See *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 531, 550; *FPI Development Inc., supra*, at 384.) Even where a defense is defectively pled, it may be allowed if the defendant's pleading gives sufficient notice to enable the plaintiff to prepare to meet the defense, in part because un-pled defenses are waived. (See *Harris v. City of Santa Monica* (2013) 56 Cal. 4th 203, 240.)

A defendant may set up as many defenses as he or she may have, but they must be

separately stated and must “refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished.” (Code Civ. Proc. § 431.30(g).)

With the exception of the 8th affirmative defense (Acts of Third Parties) and the 13th affirmative defense (Intervening / Superseding Cause), the facts related to the landlord-tenant relationship are not sufficient to establish any “new matter” that would constitute the bases for the alleged defenses. Further, as mentioned in the reply, none of the affirmative defenses are correlated with the two causes of action asserted in the complaint. In other words, the answer fails to clarify which of the claims is defeated by each defense.

The Court notes, however, that the Answer’s boilerplate defenses are as ubiquitous in civil litigation practice as they are legally impermissible, and the Court respectfully questions whether this motion is the best use of parties’ time and resources, or those of the Court. The Court acknowledges that it has been said that demurrers can be used to eliminate “boilerplate” affirmative defenses often appearing in answers (e.g., “waiver,” “estoppel,” “unclean hands”, etc.), but such demurrers have also been noted as rare, probably because they are not worth the cost when the same result (or arguably, better results) can be achieved by serving requests for admission or standard form interrogatories seeking the bases for the affirmative defenses. (See 1 Weil & Brown, Civil Procedure Before Trial § 7.35.1 (Rutter Group 2018); see also Chafetz, “Civil Law and Motion Practice in Contra Costa County,” Contra Costa Lawyer, November 2018, p. 33 [“As for demurrers to answers – really?”].)

The demurrer is overruled as to the eighth and thirteenth affirmative defenses. As for the remaining defenses at issue, the demurrer is sustained. However, based on the liberal standard for leave to amend, and since this is the first contested answer, defendant may amend. In amending the answer, the defenses shall each be correlated to the cause of action to which it is directed.

9. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
***HEARING ON MOTION IN RE: DETERMINATION OF SANCTIONS**
FILED BY:
TENTATIVE RULING:

Plaintiff Rassoul Malboubi (“Plaintiff”) filed a Motion to Compel Further Verified Responses on October 30, 2025 (the “Motion to Compel Further Responses”). The Motion to Compel Further Responses was set for hearing on March 2, 2026.

The Motion to Compel Further Responses was denied by the Court. See Order entered March 3, 2026 (the “March 3, 2026 Order”). The Court made certain findings and orders regarding the imposition of monetary sanctions as part of that ruling (the “Monetary Sanctions”). *Id.*

The determination of Monetary Sanctions was set over for further hearing on May 11, 2026, and a further briefing schedule set.

Sanctions

As ordered, defendant City of Richmond (the “City”) filed a supplemental declaration addressing the amount of Monetary Sanctions. See Declaration of Kevin D. Siegel in Support of Defendant City of Richmond’s Request for Sanctions filed April 15, 2026 (the “Supplemental Declaration”). That Supplemental Declaration seeks a total of \$4,971.00 in Monetary Sanctions. *Id.* at ¶¶8-11.